



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, N.W.
Washington, D.C. 20590

DOT-E 9126

1. **Allied Drum Service, Inc., Louisville, Kentucky, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of certain hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes a DOT Specification 6D drum to be marked by embossing on the top permanent head instead of the bottom permanent head and that the drum need not be marked with the exemption number, and provides no relief from any regulation other than as specifically stated.**

2. **BASIS.** This exemption is based on Allied Drum Service Incorporated's application dated August 8, 1983, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. **HAZARDOUS MATERIALS (Descriptor and class).** Hazardous materials presently authorized to be packaged in DOT specification 6D steel drums.

4. **PROPER SHIPPING NAME (49 CFR 172.101).** As specified in 49 CFR 172.101; or the specific chemical name or generic commodity description, as appropriate.

5. **REGULATION AFFECTED.** 49 CFR Part 107, Appendix B; 178.102-4(a).

6. **MODES OF TRANSPORTATION AUTHORIZED.** Motor vehicle, rail freight, cargo vessel, passenger-carrying aircraft, cargo-only aircraft.

7. **SAFETY CONTROL MEASURES.** Packaging prescribed fully complies with the specifications for a DOT-6D, tight-head steel drum except the marking required by 49 CFR 178.102-4(a) may be embossed on either permanent head.

This exemption further provides that the outside of the drum need not be marked "DOT-E 9126" as required by 49 CFR Part 107, Appendix B.

8. **SPECIAL PROVISIONS.**

a. Shippers may use the packagings covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel and aircraft used to transport packages covered by this exemption.

9. **REPORTING REQUIREMENTS.** Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation (or OHMR) as soon as practicable.

10. **EXPIRATION DATE.** November 30, 1985.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

MAY 16 1984

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions
Branch.

Dist: USCG, FAA, FHWA, FRA